



File No.: EXP202402852

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on January 21, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On January 21, 2024, a complaint was received by this Agency from A.A.A., represented by B.B.B. (hereinafter, the complainant) against the HEALTH SERVICE OF THE BALEARIC ISLANDS (IBSALUT) (hereinafter, the respondent) for not having duly attended to their right of access to their medical history.

According to the complaint, on November 13, 2023, the complainant requested access to their medical history at the "CASA DEL MAR" HEALTH CENTER IN CALA RATJADA (Department of Health and Consumer Affairs of the Government of the Balearic Islands). To this end, a special power of attorney was provided, expressly authorizing their representative, along with copies of both parties' ID cards. Specifically, the data for which access was requested were as follows:

"(...) Complete Medical History, medical reports, radiological tests, observations and reports of home care, laboratory results, carried out from 01/01/2015 to 12/11/2023, of A.A.A. (...)"

According to the complainant, as of the date of filing the complaint, no response has been received.

Along with the complaint, the following documents were submitted:

- Completed and signed request for access to the medical history.
- Copy of the power of attorney.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

There is no record that the respondent has submitted any response.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on April 21, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

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The aforementioned agreement granted the respondent a hearing period, to present any allegations deemed appropriate within ten working days.

The respondent has stated, in summary, that

"(...) The request was received on November 16, 2023, at 10:13 as recorded (...), with deficiencies (the copy of the ID of the applicant was missing). This deficiency was requested on 28/11/2023 via email.

On 5/12/2023, we received the copy of the ID.

We sent the requested medical history on March 5, 2024, at 10:28 via notification; additionally, on the same day, a sealed envelope containing the medical history on paper was sent to the U.B.S. Casa del Mar – Cala Ratjada, as indicated in the request. (...)"

The respondent states that, due to incidents with their staff, the exercise of rights is being attended to with delays.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may formulate any allegations they consider appropriate, with no record in this Agency that any allegations have been made within the established timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding the

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Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the claim regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, the claim was forwarded to the party being complained against for them to analyze it, respond to this Agency within a month, and provide proof of having given the claimant the due response.

The result of this forwarding did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on April 21, 2024, for the purposes provided in Article 64.1 and 65 of the LOPDGDD, the claim presented was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

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It is also taken into account what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

According to the provisions established in Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, being deemed that the request has been attended to (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions.

including the preparation of profiles, and information on transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data subject to processing shall not negatively affect the rights and freedoms of others.

The right of access in relation to the medical history is specifically regulated in Article 18 of Law 41/2002, of November 14, which is the basic regulation governing Patient Autonomy and Rights and Obligations in the Field of Information and Clinical Documentation (hereinafter LAP), the literal text of which states:

"1. The patient has the right of access, subject to the reservations indicated in section 3 of this article, to the documentation of the medical history and to obtain a copy of the data contained therein. Health centers shall regulate the procedure that guarantees the observance of these rights.

2. The patient's right of access to the medical history may also be exercised by duly accredited representation.

3. The patient's right of access to the documentation of the medical history cannot be exercised to the detriment of the right of third parties to the confidentiality of the data contained therein collected in the therapeutic interest of the patient, nor to the detriment of the right of the professionals involved in its preparation, who may oppose the right of access with the reservation of their subjective notes.

4. Health centers and individual practitioners shall only facilitate access to the medical history of deceased patients to persons linked to them, for family reasons or, in fact, unless the deceased expressly prohibited it and this is accredited. In any case, access by a third party to the medical history motivated by a risk to their health shall be limited to the relevant data. Information affecting the privacy of the deceased or the subjective notes of the professionals, or that harms third parties, shall not be provided."

In this regard, it is important to highlight Article 15 of the LAP, which outlines the minimum content of the medical history:

"1. The medical history shall include the information deemed essential for the truthful and updated knowledge of the patient's health status. Every patient or user has the right to have a record, in writing or in the most appropriate technical support, of the information obtained in all their care processes, carried out by the health service both in primary care and specialized care.

2. The main purpose of the medical history shall be to facilitate healthcare, documenting all those data that, under medical criteria, allow for the truthful and updated knowledge of the health status.

The minimum content of the medical history shall be as follows:

a) The documentation related to the clinical-statistical sheet.

b) The admission authorization.

c) The emergency report.

d) The anamnesis and physical examination.

e) The evolution.

f) The medical orders.

g) The consultation sheet.

h) The reports of complementary examinations.

i) The informed consent.

j) The anesthesia report.

k) The operating room report or delivery record.

l) The pathological anatomy report.

m) The evolution and planning of nursing care.

n) The therapeutic application of nursing.

ñ) The constants chart.

o) The clinical discharge report.

Paragraphs b), c), i), j), k), l), ñ), and o) shall only be required in the completion of the medical history when it concerns hospitalization processes or as provided.

3. The completion of the medical history, in aspects related to direct patient care, shall be the responsibility of the professionals involved in it.

4. The medical history shall be maintained with criteria of unity and integration, in each healthcare institution at a minimum, to facilitate the best and most timely knowledge by the professionals of the data of a particular patient in each care process."

Regarding the preservation of the medical history, Article 17 of the LAP, in its sections 1 and 5, provides that:

"1. Health centers have the obligation to preserve clinical documentation under conditions that guarantee its proper maintenance and security, although not necessarily in the original support, for the proper assistance to the patient for the time appropriate to each case and, at a minimum, five years from the date of discharge from each care process (...)

5. Healthcare professionals who carry out their activity individually are responsible for the management and custody of the care documentation they generate."

Conclusion

In the present case, it has been established that the claimant requested access to their medical history from the respondent. Furthermore, during the processing of this procedure, the respondent has informed this Agency that, once the aforementioned request was rectified with the submission of a copy of the applicant's ID on December 5, 2023, on March 5, 2024, they sent a copy of the medical history to the Casa del Mar Health Center – Cala Ratjada, both through the Shared Notification Management Service (Notifica) and in a sealed envelope. It is noted

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that the delay in the response is caused, among other aspects, by the existing human resources situation.

However, the responding party has not provided any documentary evidence along with its response that allows for the analysis and evaluation of its statements regarding having addressed the right nor that the duty to respond established in Articles 15 of the GDPR and 13 of the LOPDGDD has been fulfilled. In this regard, it is worth recalling that, pursuant to the provisions of Article 12.4 of the LOPDGDD, “the burden of proof of compliance with the duty to respond to the request for the exercise of rights made by the affected party shall fall on the controller.”

Therefore, since no copy of the necessary communication that must be directed to the complaining party informing them of the decision made regarding the request for the exercise of rights is attached, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge the HEALTH SERVICE OF THE BALEARIC ISLANDS (IBSALUT) with NIF Q0719003F, to send to the complaining party, within ten working days following the notification of this resolution, a certification addressing the requested right, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to the HEALTH SERVICE OF THE BALEARIC ISLANDS (IBSALUT).

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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